

**RECORD OF PROCEEDINGS FOR THE GOVERNING BODY
OF THE CITY OF CHEYENNE**

Office of City Clerk

June 16, 2020

The Governing Body of the City of Cheyenne convened in a special meeting on this date beginning at 6:00 p.m. via WebEx Electronic Conference Meeting. Attending electronic conference meeting were: MAYOR – Marian J. Orr; COUNCIL MEMBERS – Mr. Case, Mr. Cook, Mr. Esquibel, Mr. Laybourn, Mr. Luna, Dr. Rinne, Mr. Roybal, Mr. Shanor and Mr. White. Also attending: Kris Jones, City Clerk.

[Clerk's note: Dr. Rinne was able to hear the proceedings but was unable to communicate due to audio difficulty. Dr. Rinne cast affirmative votes for all agenda items and amendments presented through alternative technology methods]

ORDINANCE – 3rd READING – Amending Section 5.12.110, Open Container-Sales and Consumption-Exceptions, and Section 5.12.120, Special Use Areas-Special Event Permit of Chapter 5.12, Alcoholic Liquor and Malt Beverages, of Title 4, Business Licenses and Regulations, of the Municipal Code of the City of Cheyenne, Wyoming. Mr. Luna moved to approve on third and final reading, seconded by Mr. White. Motion carried. Voting “yes” – all members of the governing body. (#4312)

ORDINANCE – 3rd READING – Amending Section 8.40.063, Food Service Establishments-Sidewalk Cafes, of Chapter 8.40, Food and Food Service Establishments, of Title 8, Health and Safety, of the Municipal Code of the City of Cheyenne, Wyoming. Mr. Luna moved to approve on third and final reading, seconded by Mr. Cook. Motion carried. Voting “yes” – all members of the governing body. (#4313)

RESOLUTION – Creating a Special District for the ‘Summertime on the Streets Event’ to be held June 20, 2020, in which the possession of open containers is permitted between the hours of 11:00 a.m. and 4:00 p.m. Alessandra McCoy Fakelman, Deputy City Attorney, provided information on the resolution and affiliated ordinance stating the items allow special areas or districts in which the possession of open containers is permitted and certain liquor licensees can participate. The periods of time and boundaries are established by resolution adopted by the governing body. This particular resolution is for a special event to occur on Saturday, June 20th from 11:00 a.m. to 4:00 p.m. Ms. McCoy-Fakelman advised that upon feedback from the Police Chief, a proposed amendment contains specificity for designated certain types of cups, wristbands and doesn't allow for any outside liquor. Amber Ash, Downtown Development Authority Executive Director, provided event details and advised the event will be in compliance with the governor's health orders. She further confirmed that compliance will be followed and implemented in efforts to limit COVID-19 exposure. Mr. Luna moved to adopt, seconded by Mr. Case. Mr. Roybal moved to amend by substitute dated June 16, 2020, seconded by Mr. White. Mr. Roybal explained the substitute provides additional safeguards including easy to identify specific wristband and cup requirements and will not allow for outside liquor. Upon inquiry, Ms.

Ash provided details involving type, use and reuse of cups and wristbands. Motion to amend carried. Voting “yes” – all members of the governing body. Main motion as amended carried. Voting “yes” – all members of the governing body. (#6065)

Mayor Orr opened a public hearing for proposed budgets for the City of Cheyenne and Board of Public Utilities for Fiscal Year 2021. There being no comments or input and purpose of the hearing having been met, Mayor Orr closed the hearing.

ORDINANCE – 3rd READING – Appropriating moneys for the City of Cheyenne, Wyoming for various purposes in conducting the municipal government of said City and fixing the amount of general and special taxes as part of the revenue required to meet the said appropriation, all for the Fiscal Year beginning July 1, 2020 and ending June 30, 2021. Mr. White moved to approve on third and final reading, seconded by Mr. Roybal. Mr. White moved to amend by adding footnotes #1-13 and adding language that the City Treasurer has the authority as part of this amendment to make any technical amendments to these footnotes and the budget ordinance to reflect the intent of these footnotes, seconded by Mr. Roybal. Mayor Orr clarified the footnotes are from the June 10, 2020 Committee of the Whole meeting. Motion to amend carried. Voting “yes” – all members of the governing body. Mr. White moved to amend Footnote #2 to include: This footnote also excludes seasonal workers and does not prohibit an employee from being promoted into a pre-existing higher position with a pre-existing higher salary, seconded by Mr. Luna. Motion to amend carried. Voting “yes” – all members of the governing body. Upon inquiry, Robin Lockman, City Treasurer, confirmed there were no additional amendments needed as a result of recent discussions with the Fire Union relating to the Fire Department’s budget. Main motion as twice amended carried. Voting “yes” – all members of the governing body. (#4314)

Mr. Luna expressed appreciation to City Treasurer Robin Lockman, City Council and City staff members for their dedicated work on the budget. Mayor Orr echoed Mr. Luna’s comments and advised that due to the unprecedented times, the budget may need to be reviewed through out the fiscal year.

Submitted by,

Kristina F. Jones
City Clerk

This notice is available in alternative, accessible formats upon request.

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